

Court No. - 21

Case :- WRIT - C No. - 3623 of 2023

Petitioner :- Satyadev Bharti

Respondent :- State Of U P And 2 Others

Counsel for Petitioner :- Ritesh Kumar Singh, Satyendra Kumar Gupta

Counsel for Respondent :- C.S.C., Chetan Chatterjee

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

The petitioner has challenged the notice of recovery issued by respondent no.3 on basis of an order of final assessment in a case of theft of electricity.

Sri Chetan Chatterjee, learned counsel for the respondent Electricity Department states that the impugned recovery has been withdrawn and that fresh order will be passed after providing opportunity of hearing to the petitioner.

Accordingly, the petition is disposed of with liberty to the respondents to pass a fresh order strictly in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)

Order Date :- 2.2.2023

SL